



February 13, 2026

ENGROSSED HOUSE BILL No. 1065

DIGEST OF HB 1065 (Updated February 10, 2026 10:04 am - DI 140)

Citations Affected: IC 3-14; IC 35-31.5; IC 35-44.1.

Synopsis: Ban on gratuities for public officials. Makes it a Class A misdemeanor for: (1) a person to offer a payment to a public servant as a reward for an official act performed by the public servant for the person; or (2) a public servant to solicit or accept a payment as a reward for an official act performed by the public servant for the person. Increases the penalty to a Level 6 felony if the fair market value of the reward is at least \$750. Exempts: (1) a good or service that is subject to a reporting requirement or otherwise authorized by an applicable rule or code of ethics; (2) a good or service with a value of
(Continued next page)

Effective: July 1, 2026.

Slager, Olthoff

(SENATE SPONSORS — NIEMEYER, FREEMAN)

December 5, 2025, read first time and referred to Committee on Courts and Criminal Code.
January 22, 2026, amended, reported — Do Pass.
January 28, 2026, read second time, amended, ordered engrossed.
January 29, 2026, engrossed.
February 2, 2026, read third time, passed. Yeas 85, nays 0.

SENATE ACTION

February 5, 2026, read first time and referred to Committee on Corrections and Criminal Law.
February 12, 2026, reported favorably — Do Pass.

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less than \$100; (3) commemorative or ceremonial items, such as plaques, trophies, or framed photos; (4) lawful political contributions; (5) wages and other forms of work related compensation from the governmental entity employing the public servant that the public servant is legally permitted to receive; or (6) an offer of employment that is not offered as a reward for an official act performed by a public servant. Provides that a person who knowingly or intentionally violates a specified provision by commingling the funds of a committee with the personal funds of an officer, a member, or an associate of the committee commits a Class A misdemeanor. Enhances the penalty to a Level 6 felony if a person commingles at least \$50,000 of committee funds.



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Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1065

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 3-14-1-14.5 IS AMENDED TO READ AS
2 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14.5. (a) A person who
3 recklessly violates IC 3-9-2-9(c) by commingling the funds of a
4 committee with the personal funds of an officer, a member, or an
5 associate of the committee commits a Class B misdemeanor.

6 (b) A person who knowingly or intentionally violates
7 IC 3-9-2-9(c) by commingling the funds of a committee with the
8 personal funds of an officer, a member, or an associate of the
9 committee commits a Class A misdemeanor.

10 (c) The offense described in subsection (b) is a Level 6 felony if
11 a person commingles at least fifty thousand dollars (\$50,000) of
12 committee funds with the personal funds of an officer, a member,
13 or an associate of the committee.

14 SECTION 2. IC 35-31.5-2-146.5 IS ADDED TO THE INDIANA
15 CODE AS A NEW SECTION TO READ AS FOLLOWS
16 [EFFECTIVE JULY 1, 2026]: Sec. 146.5. "Gratuity", for purposes
17 of IC 35-44.1-1-2.5, has the meaning set forth in IC 35-44.1-1-2.5.

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SECTION 3. IC 35-44.1-1-2.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2.5. (a) As used in this section, "gratuity" means a payment made to a public servant after an official act as a reward or token of appreciation. However, the term does not include:

(1) a good or service that is:

(A) subject to a reporting requirement; or

(B) otherwise authorized;

under a rule or code of ethics that applies to the donor or public servant;

(2) a good or service having a de minimis value of less than one hundred dollars (\$100);

(3) an item that is primarily ceremonial or commemorative, such as a plaque, trophy, certificate, framed photo, or similar item;

(4) a political contribution subject to IC 3-9-2 that is reported in accordance with applicable law;

(5) salary, wages, a bonus, or any other form of work related compensation:

(A) from the governmental entity that employs the public servant; and

(B) that the public servant is legally authorized to receive; or

(6) an offer of employment that is not offered as a reward for an official act performed by a public servant.

(b) As used in this section, "public servant" includes a former public servant.

(c) A person who provides a gratuity to a public servant, with the intent to reward the public servant for an official act performed by the public servant for the person in the public servant's official capacity, commits providing an unlawful gratuity to a public servant, a Class A misdemeanor. However, the offense is a Level 6 felony if the fair market value of the gratuity is at least seven hundred fifty dollars (\$750).

(d) A public servant who:

(1) solicits or accepts a gratuity from another person; and

(2) either:

(A) solicits the gratuity as a reward for; or

(B) knows or reasonably should know that the gratuity is offered as a reward for;

an official act performed by the public servant for the person



1 in the public servant's official capacity;
2 commits soliciting or accepting an unlawful gratuity, a Class A
3 misdemeanor. However, the offense is a Level 6 felony if the fair
4 market value of the gratuity is at least seven hundred fifty dollars
5 (\$750).



COMMITTEE REPORT

Mr. Speaker: Your Committee on Courts and Criminal Code, to which was referred House Bill 1065, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 1, between the enacting clause and line 1, begin a new paragraph and insert:

"SECTION 1. IC 3-14-1-14.5 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14.5. **(a)** A person who recklessly violates IC 3-9-2-9(c) by commingling the funds of a committee with the personal funds of an officer, a member, or an associate of the committee commits a Class B misdemeanor.

(b) A person who knowingly or intentionally violates IC 3-9-2-9(c) by commingling the funds of a committee with the personal funds of an officer, a member, or an associate of the committee commits a Class A misdemeanor.

(c) The offense described in subsection (b) is a Level 6 felony if a person commingles at least fifty thousand dollars (\$50,000) of committee funds with the personal funds of an officer, a member, or an associate of the committee."

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1065 as introduced.)

MCNAMARA

Committee Vote: yeas 13, nays 0.

 HOUSE MOTION

Mr. Speaker: I move that House Bill 1065 be amended to read as follows:

Page 2, line 18, delete "or".

Page 2, line 23, delete "receive." and insert "**receive; or**

(6) an offer of employment that is not offered as a reward for an official act performed by a public servant."

Page 2, line 28, after "servant" insert "**for the person**".

Page 2, line 39, after "servant" insert "**for the person**".

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(Reference is to HB 1065 as printed January 22, 2026.)

SLAGER

COMMITTEE REPORT

Mr. President: The Senate Committee on Corrections and Criminal Law, to which was referred House Bill No. 1065, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill DO PASS.

(Reference is to HB 1065 as reprinted January 29, 2026.)

FREEMAN, Chairperson

Committee Vote: Yeas 9, Nays 0

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